

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/18/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0003459

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: OTMANE BENNANI

vs.

DEFENDANT: NORTH BAY REGIONAL
SURGERY CENTER, LLC, ET AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

In light of the notice of settlement filed August 13, 2026, this matter is ordered **OFF CALENDAR**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/18/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0004594

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: ALLISON FAUST

vs.

DEFENDANT: TEOBALDO SCHUJMAN,
ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: DEFENDANT TEOBBALDO SCHUJMAN AND CARMEN ALICIA SCHUJMAN'S MOTION FOR ENTRY OF INTERLOCUTORY JUDGMENT FOR ATTORNEYS FEES AWARDED AND FOR ENTRY OF INTERLOCUTORY JUDGMENT FOR SANCTIONS AWARDDE

RULING

Defendants' motion for entry of interlocutory judgments is **DENIED**.

Procedural Background

On June 27, 2025, the Court entered an Order awarding Defendants \$3,115 in discovery sanctions. (Declaration of Patricia Conway ("Conway Decl."), ¶7 and Exh. D.) On October 14, 2025, the Court entered an Order awarding Defendants \$36,560 in attorney's fees and costs under Code of Civil Procedure Section 405.38. (Conway Decl., ¶3 and Exh. A.) Plaintiff has not made any payment toward the fee award and has paid \$1,000 towards the sanctions award. (Conway Decl., ¶7.)

Defendants request that the Court enter an interlocutory judgment as to the unpaid amount for each order, plus interest at 10% per annum from the date of each order.

Defendants' Objections

The Court does not rule on Defendants' objections to Plaintiff's declaration as Plaintiff's declaration has no impact on the Court's ruling.

Discussion

Defendants' motion is denied. The sanction order already has the full force and effect of a money judgment which Defendants can enforce through execution. (See *Newland v. Superior*